CORAM: IN THE ASOFAN DISTRICT COURT HELD ON THE 3RD JUNE, 2025 BEFORE HER WORSHIP NANCY TEIKO SEARYOH (MRS.) SITTING AS MAGISTRATE

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SUIT NO A9/60/24

BETWEEN

1. AWO NYARKOAA
2. RICHARD BOATENG PLAINTIFFS

ALL OF POKUASE

VRS

ATTA ASAMOAH SNR. DEFENDANT

POKUASE

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**J U D G E M E N T**

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**INTRODUCTION**

The plaintiff in this suit instituted this action by a Form 9 from the rent control filed on the 29th July 2024. By this form the principal rent officer referred the matter to the rent Magistrate to make an order for the defendant in this suit to quit therefrom.

From the proceedings at the rent control office, the complainant therein who is the defendant herein informed the principal rent manager that the first respondent therein the first plaintiff herein issued him with an eviction notice after he informed her about the expiration date of their agreement. He stated that he called her about the renewal since she repossessed one of the shops last year claiming that he the complainant therein and defendant herein did not notify her of renewal. He further stated that the complainant had called him and informed him that she needed the shop and that he should quit.

The facts of the case as per the principal rent officer are that the complainant (defendant herein) entered into tenancy agreement with the respondents (plaintiffs herein) for the respondents' shops and that before the expiration of the agreement for the first shop the respondent notified the complainant to vacate one of the shops whilst the complainant was prepared to renew his tenancy. The complainant deposed further that the respondent after repossessing the shop rented it out to a prospective tenant whilst he was ready to renew the tenancy.

He further stated that the notice was issued for him to quit without having recourse to the payments he had made to the respondents and that the total payments made to the respondents expired on the 18th December 2023. The rent officer further stated that the land was leased to build the shops after the first respondent's shop at Okaishie got demolished and that the first respondent could not shuttle between Kwabenya and Okaishie everyday due to her health and age. He further stated that the respondent insisted that the complainant quit therefrom to enable her occupy same. He lastly stated that from the total evidence adduced and what transpired during the proceedings, the substantial agreement signed by the parties had expired but the complainant had not

secured alternative premises. He therefore ordered the complainant to pay and to stay thereon to continue with his search for new premises and to vacate on or before 17th July 2024. On the 4th July 2024 the complainant submitted a letter requesting the respondents to extend his tenancy for a year which they refused.

**FACTS OF THE CASE AS PRESENTED BY PLAINTIFF:**

The Plaintiffs per the form nine from the rent control filed sought only one relief. Thus, they prayed the Court to enforce the rent officer's recommendation by ejecting the Defendant from the shop he occupies. The order for ejectment was on the basis that the Plaintiffs needed their shop for personal business occupation and use as the tenancy between the parties expired on 18th December 2023 as spelt out in the Tenancy Agreement.

Both plaintiffs testified and called only one witness. In support of their case, the plaintiffs tendered in evidence:

- Exhibit 'A' - Tenancy Agreement between Mr. Richard Boateng and Atta Asamoah and Dora Ayiku dated 20th May, 2016.
- Exhibit 'B' - Tenancy Agreement between Mr. Richard Boateng and Atta Asamoah dated 30th June, 2017.
- Exhibit 'C' - Tenancy Agreement between Mr. Richard Boateng and Atta Asamoah dated 18th December, 2018.
- Exhibit 'D' – Statutory Declaration
- Exhibit 'E' – Notice from Kasamol Agency to the Defendant dated 3rd July, 2023
- Exhibit 'F' – Letter from Rent Control to the Plaintiff (Form 33)

- Exhibit 'G' -Form 9
- Exhibit 'H' Series – Invoices (H1-H5)
- Exhibit 'J'- Notice of refund to Grace Afadzinu
- Exhibit 'K'- Notice to terminate tenancy after expiration dated 3rd March 2021
- Exhibit 'M' - Tenancy agreement between Awo Nyarkoah and Attah Asamoah dated 30th June 2022.

**FACTS OF THE CASE AS PRESENTED BY DEFENDANT:**

The Defendant indicated in his defence that he indeed occupies two of the plaintiff's shops for which the expiry dates are 18th December 2023 and 30th June 2027. The Defendant argues that the Plaintiff's agreed to extend the tenancy of the expired shop being that of the 18th December, 2023 and that it was on that basis that the Defendant renewed the tenancy of the other shop till 30th June 2027. The Defendant also argues that he uses both shops together for his business and that he cannot use one without the other and that ejecting him for the expired shop would cause him untold hardships as he has nowhere to keep his goods. The Defendant prayed that the tenancy of the expired shop be extended to the unexpired being till 30th June 2027 so he moves out entirely. He also prayed that the expenses of (GHC12,725.00) which he incurred in tiling the shops and also erecting canopies be refunded to him or converted to rent.

He therefore counterclaimed for

i. An order directed at plaintiffs to renew the tenancy agreement of the defendant for the second shop and for all costs incurred by the defendant in making the shops habitable convertible into rent

ii. An order to restrain plaintiffs and their assigns, privies or agents from renting out the frontage of defendant's shops to food vendors and also harassing and ejecting the defendant from the premises.

iii. Legal costs

In support of his case, defendant called Michael Akuamoah (DW1) who tendered in evidence:

- Exhibit 1 – Tenancy Agreement dated 30th June, 2017 between the second plaintiff and defendant
- Exhibit 2 – Invoice dated 25th March, 2018
- Exhibit 3 – Tenancy Agreement dated 18th December 2018 between the second plaintiff and defendant
- Exhibit 4 – Tenancy Agreement dated 30th June 2022
- Exhibit 5 – Application for rent extension by defendant.

In their reply to the defence, the plaintiffs joined issues with the defendant on his defence and counterclaim. They prayed that the defendant is not entitled to any counterclaim and that his claims are capricious and a waste of courts time. They further averred that the only agreement they have with the defendant is that of the shop which tenancy will expire in 2027.

**ISSUES FOR DETERMINATION:**

i. Whether or not the defendant in this suit should be ejected from the second shop.

ii. Whether or not the defendant expended money or incurred costs in making the shops habitable.

iii. Whether or not the plaintiffs should be restrained from renting out the frontage of defendant's shops to food vendors and also from harassing and ejecting the defendant from the premises

**PROCEDURE FOR TRIAL**

This court referred parties to Court-connected A.D.R to enable parties attempt settlement. Parties returned to court as settlement broke down. The court proceeded to take evidence in this matter. Plaintiffs in this suit testified by themselves and called one witness whilst the defendant testified through his witness Michael Akuamoah.

**BURDEN OF PROOF/PERSUASION**

In civil cases, the law is that he who asserts usually has the burden of proving his case on the preponderance of probabilities and he proves it by providing sufficient evidence in accordance with **Sections 11(4) and 12 of the Evidence Act, 1975 (NRCD 323)**. In effect, the burden of proving any particular averment or allegation is on the one who made it. It is when the claimant has established an assertion on the preponderance of probabilities that the burden shifts onto the other party, failing which an unfavorable ruling will be made against him. The court in **Ababio v Akwasi III [1995-1996] GBR 774** puts it succinctly as follows:

***"…it is the party who raises in his pleadings an issue essential of success of his case who assumes the burden of proving it. The burden only shifts to the defence to lead sufficient evidence to tip the scales in his favour when on a particular issue the plaintiff leads some evidence to prove his claim. If the defendant succeeds in doing this he wins, if not he loses on that particular issue."***

In **Sakordie v FKA Company Limited [2009] SCGLR 65**, the Supreme Court held that

***"…the burden of producing evidence requires a party to produce sufficient evidence which on the totality of the evidence, leads to a reasonable mind to conclude that the existence of the fact was more probable than its non-existence."***

See also **Ackah v Pergah Transport limited& others [2010] SCGLR728**

In the case of **Elizabeth Asare V Kwabena Ebow[2013] 57 GMJ 152** it was held that ***"both plaintiff and defendant counterclaimants have respective burden of proof in a land case."***

**ANALYSIS OF THE ISSUES**

**The Rent Act 1963 (Act 220)** provides the conditions under which the Landlord may recover possession from a tenant or that may lead to the ejection of a tenant form premises.

**Section 36 of Act 220** defines *'premises'* as: **"any building, structure, stall or otherwise, which is the subject of a separate letting, other than a dwelling house or a part thereof bonafide let at a rent which includes payment for board or attendance".**

The conditions that must be satisfied before an order for the recovery of possession of premises or ejectment shall be made by a competent court are set out in **Section 17 of the Rent Act 1963 (Act 220)**. Among these conditions are the condition in **Section 17(1) (g) and (h)** upon which the plaintiffs have brought this action.

**Section 17(1)** provides that;

*(1) Subject to the provisions of subsection (2) of Section 25 and of Section 28, no order against a tenant for the recovery of possession of, or for the ejectment from, any premises shall be made or given by the appropriate Rent Magistrate, or any other*

*Judge of a court of competent jurisdiction in accordance with the provisions of any other enactment for the time being in force, except in any of the following circumstances: -*

*(g) where the premises are reasonably required by the landlord for personal occupation as a dwelling house by the landlord, a member of the family of the landlord or a person in the whole-time employment of the landlord, the premises being constructed to be used as a dwelling house, but*
*(i) the circumstances that the premises are reasonably required by the landlord for his personal occupation by someone in the employment of the landlord shall not be a sufficient circumstance if the Magistrate or the Judge is not satisfied that the landlord usually provides premises for occupation by an employee of the class to which the employee belongs, and*
*(ii) an order shall not be made if the Rent Magistrate or Judge is satisfied having regard to the circumstances of the case, including an alternative accommodation available for the person for whose occupation the premises are required or for the tenant, that greater hardship would be caused by granting the order than by refusing it.*

*(h) where the lease has expired and the premises are reasonably required by the landlord to be used for his own business purposes, such premises being constructed to be used as such, if the landlord has given not less than six month's written notice to the tenant of his intention to apply for an order for the recovery of the possession of, or ejectment from the premises*

**Section 36 of Act 220** defines ***"business premises"*** as premises needed for business, trade or professional purposes.

From the above section **17 (1) (h) of the Act**, the elements to be proven in this regard are;

***(a) That the lease has expired.***

***(b) That the premises are reasonably required by the Landlord for personal business purposes.***

***(c) That the premises must be constructed to be used for business purposes.***

***(d) That the landlord must give written notice of not less than six months.***

In relation to the first element, that the lease had expired. A Lease must of necessity expire before a landlord could recover the premises. Exhibit 'C' as tendered by the plaintiffs and Exhibit 3 also tendered by the defendants' witness is clear proof. Thus, paragraph seven of the said Tenancy Agreement tendered by both parties at trial clearly spells it out that the agreement between both parties expires on 18th December, 2023. On the total evidence adduced both parties were in agreement that the lease had expired and therefore that fact was not in contention.

During the cross examination of the defendants witness by counsel for the plaintiffs this is what ensued

Q: Are you aware that the two shops you are operating, one of them tenancy has expired

A: Yes, My Lady.

This is also what ensued between counsel for the defendant and the second plaintiff during cross-examination

Q: And it is only one shop which expired in 2023, December and it is for that reason we are in court

A: Yes, my lady.

Concerning the second element to be proven, the determination of whether the premises is reasonably required for business purposes is a question of fact for the trial judge to determine as espoused in the case of **Alameddine Brothers v Paterson Zochonis and Co. Ltd (1971) 2GLR 403 CA**. ***This case emphasized that where the Landlord required the property for their personal use and the tenancy had expired the Landlord was entitled to the relief being requested.***

Thus, a landlord must establish that he reasonably requires the premises for this purpose. It is the Landlord's obligation to prove that it is he himself who reasonably requires the premises for business use.

In the case of **Joseph v Farisco Gh.Ltd [1991] 2GLR 151-162**, the Court stated that;

***"In coming to a conclusion as to whether or not a landlord reasonably required his premises for his own business, and in exercising his discretion as to whether or not to grant an order for recovery of possession, the trial judge was duty bound to take account of all relevant circumstances which existed at the time of the hearing in the broad common-sense way of a man of the world and give such weight as he thought right to various factor in the situation. The Judge should have regard on the one hand to the general scheme and purpose of the Act and on the other to the special conditions, including, to a large extent, matters of domestic and social character."***

Again, the case of **Dankwa v Anokwa [1989-90] 2GLR 63** held that a landlord was entitled to an order of ejectment and recovery of possession of his premises under Section 17(1)(h) only if the premises were reasonably required to be used by him for his own business.

It is the first plaintiffs' case that her shop at Okaishie was demolished and so she and her husband decided to look for a land closer to their house to build shops due to her health condition. They therefore found a land for lease at Pokuase along the main road and decided to build but the construction delayed and so she rented a shop at Madina to keep her business running. She stated that when she completed the shops, she rented them out and the defendant rented one and subsequently two of the shops making the total number of shops occupied by the defendant three. She maintained at the rent control, her reply to the defence and subsequently in her witness statement that she informed the defendant before he rented the shops that she would not renew the tenancy after five years and so when the first tenancy expired, she took the shop.

She further stated that in the year 2022, when the second tenancy expired, the defendant called to inform her that he would need only one shop to showcase his goods because he had completed his own shops. She explained to him that the tenancy would not be renewed after five years which he agreed and she renewed the tenancy on the 30th June 2022. She further informed him by notice that she would not renew the tenancy of the third shop which would expire in December 2023 on the 3rd July 2023. The defendant called her after that to inform her that he was no longer interested in the 30th June 2022 agreement and so wanted a refund and she agreed. She vacated her shop at Madina and was planning to come to Pokuase in December after the defendant had vacated when in September 2023, the defendant summoned her husband and herself at the rent control office Accra.

She further stated that due to the defendant overstaying, her goods are in a deplorable state and are getting damaged.

The defendant has always maintained since the inception of this case at the rent control office per the exhibit 'G' that she needed her shop for her own personal use.

During cross-examination of the first plaintiff, this is what ensued

Q: Your assertion that you need defendants' shop for your own personal use is untrue

A: That is true, I am taking it for my own personal use.

Thus the 2nd plaintiff corroborated this testimony in the fourth paragraph of proceedings of 4th January 2024 per exhibit G that the first plaintiff needed the premises for her personal occupation.

The defendants witness Michael Akuamoah stated in paragraph 11 of his witness statement that the plaintiffs gave his boss a lot of pressure to which he succumbed and gave out possession of the first shop to the plaintiffs only to realize that a new tenant who was not related to the plaintiffs had come to occupy the shop. In paragraph 12, he further stated that upon enquiry by his boss they noticed that the shop had been given to a new tenant at a higher fee or cost.

Per the paragraph two of the proceedings of the 4th January 2024 at the rent control office the first plaintiff indicated that the person in the shop was the second plaintiff's partner and even admitted under cross examination that the said shop is not vacant. Indeed, the second plaintiff corroborated that testimony in paragraph four of the proceedings of 12th January 2024 that the occupant of that shop now is his partner and not a tenant.

The defendant failed to lead further evidence, call further witnesses or produce other evidence of facts and circumstances to prove that the one occupying the shop was not

related to the plaintiffs in anyway and that the plaintiff rented the shop out to them at a higher fee as they claimed. In the case of **Majolagbe v. Larbi & Anor [1959] GLR 190 at 192** it was held that:

***"Where a party makes an averment capable of proof in some positive way, e.g., by producing documents, description of things, reference to other facts, instances or circumstances and his averment is denied, he does not prove it by merely going into witness box and repeating the averment on oath, or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances, from which the Court can be satisfied that what he avers is true."***

For the third element as to whether the premises were constructed to be used for business purposes, the Landlord must show that the premises were constructed for use for business purposes only.

For the premises to have been constructed to be used as business premises, this implies that it excludes dwelling houses. In this regard, the landlord must then prove that the premises were constructed for business purposes. As was held in the case of **Sfarijilani v Basil [1973] 2GLR 260-264** that premises used for business purposes were deemed to be premises constructed to be used as business premises.

Per the evidence led by both parties the issue as to whether or not the premises were constructed for business purposes is not under contention in this suit. This is because parties on both sides have indicated that the building contains shops. The plaintiff indicated that the shops are 10 meaning five on the top floor and five on the ground floor. Their grantor occupies one each on the top floor and ground floor respectively leaving for her and her husband four shops both on the top floor and ground floor. The first plaintiff has always maintained that after her shops in Okaishie were demolished, she

and her husband decided to look for land closer to her home to build shops so she could run her business due to old age and ill health but had to rent shops at Madina to run her business due to some delays in the construction of her shops.

The second plaintiff corroborated this in his evidence in chief. Under cross examination the first plaintiff explained that at the time, she worked with lever brothers and so they gave her a plan to use the top for her warehouse and the ground floor for the retail but because the building delayed after which a further road construction also delayed their opening of the building, her agreement with lever brothers was given to another person and so she had to rent at another place. This is what ensued during cross examination

Q: You will agree with me that the building the subject matter was constructed solely for business purposes is that the case

A: I built it for my private business and not for commercial

Q: So, you would agree with me that the building is not a residential property

A: That is not so. I built it for my business

All these clearly go to support the fact that the premises were built for business purposes and not for residential purposes.

On the last element that the landlord is to give six months' notice to the defendant before the defendant can be ejected, the courts have ruled that giving of notice was necessary. See the case of **Farage v Malmoni, High Court, Sekondi, 22nd November 1968, digested (1969) CC 24**.

It was also observed in the case of **Adu and Others v Clergg [1981] DLCA196**, that where the length of notice was five months, the court held that the landlord failed to comply

with the requirement, he breached an essential prerequisite which a landlord who sought possession of his business premises from his tenant had to fulfill.

It is very essential that the landlord gives six months' written notice to the tenant before applying for the recovery of the premises from the tenant. In the case of **Alawayie v Agyekum [1984-86] 1GLR 179,** the court held that before a court could order recovery of possession of business premises in favour of a landlord, it must in accordance with the provisions of **Rent Act, 1963 (Act 220), Section.17 (1) (h)** be satisfied by the landlord that he reasonably needed the premises for his own business and that the requisite statutory notice of at least six months was given to the tenant. The Court added that the Landlord must have complied with Regulation 18 of the **Rent Regulations 1964 (L.I 369)** which provided that

*18. **Where a landlord requires his premises for the purposes of section 17(1) (g), (h), (l) or (k), he shall furnish the appropriate Rent Officer a declaration as in Form 14 of the First Schedule hereto**.*

The courts have however held that mere failure to comply with this directive does not mean the court cannot go ahead and make a determination as to whether the landlord reasonably requires the premises for his own business use. This implies that non-compliance with the statutory requirement does not oust the jurisdiction of the court to hear the substantive matter, however Regulation 18 must be complied with before an order of ejectment made by the court would become effective.

Per the facts of the case, the Plaintiffs produced Exhibit E, dated 3rd July 2023 by Kasamol Agency Ltd. Signed by the 1st Plaintiff directed to the Defendant indicating that the agreement would expire on 18th December 2023 and since management had decided not to rent the store again, the keys were to be handed over to the 2nd Plaintiff. The defendant per his complaint made at the rent office paragraph two of the form 7 at the rent control

office confirmed that he had received notice from the respondent to make one shop vacant.

This court observed that from 3rd July 2023 till 18th of September 2023 made five months and two weeks. This period is clearly two weeks short of the required six months' notice period required. However, upon perusing the proceedings at the rent control office which is exhibit G herein at the last paragraph of the proceedings of 12th January 2024 the rent officer ruled thus,

***"That in line with section 27(1) of the rent Act 220, 1963, the complainant is ordered to pay and stay thereon to continue with his search for new premises and vacate on or before 17th July 2024"***

From the date of this order which is 12th January 2024 to 17th July 2024 makes six months and five days and the court hereby holds that this period given by the rent officer to the defendant to look for new premises and to vacate the said shop, constitutes enough notice to the defendant to vacate the premises.

The test of 'greater hardship is another issue to be dealt with as counsel for the defendant raised the issue on page eleven of his written address, that the Courts need to do a balancing act looking at all the circumstances of the case to consider which of the parties will suffer hardship and that if it is the defendant suffering the hardship then the court should not make the order and vice versa. He cited the case of **Oman Ghana Trust Holdings Ltd v. Acquah [1984-86]1 GLR 198.** However in **John Lawrence Ltd. V Obeng-Ansong [1995-96] 1GLR 146** the court held that it is immaterial whether the tenant would suffer greater hardship or not. This is because under Section 17(1) (h) the court is not required to consider the issue of hardship in determining the rights of the parties.

It is imperative for the court to state that upon perusing the **form 14** as stated in the regulation 18 of the **Rent Regulations 1964 (L.I 369),** the court observed that the form 14

is a form that is supposed to be filled and filed by the plaintiff or landlord in order to initiate the process of ejecting the tenant at the rent control after the tenant has been served with the notice but failed the vacate the premises.

Having regard to the suit before this court, the court observed that it was the defendant (tenant) who made a complaint at the rent control office after he had been served with a notice by the landlord (1st plaintiff) to vacate the shop after his tenancy had expired. He made the complaint by filling the **form 7** titled **"complaint against conduct of landlord /tenant/person interested in premises".** His complaint culminated into the proceedings marked exhibit G in this suit and then the institution of this suit by the form 9 after the tenant/complainant/defendant failed to comply with the orders made by the rent officer.

On the second issue as to whether or not the defendant expended money to make the shops habitable, the defendant's witness stated in his witness statement that due to the uncompleted nature of the shop his boss by an oral agreement with the second plaintiff tiled the entire shop at his own cost and the second plaintiff agreed to convert the cost incurred by his boss into rent for him. He attached exhibit 2' an invoice dated 25th March 2018 bearing the name Atta Asamoah Snr.

It is also the case of the second defendant that after the construction, all the ten shops including the porches and staircase inside the building were all tiled with uniform tiles and also all the wall tiles were uniform in all the toilets, he also stated that he gave the tiling work to one person with his workers who tiled the whole building and as of now the person is still his tiler who he calls to fix any damage on the tiles. He attached his exhibit H series which are invoices bearing the name Mr. Boateng all issued in 2015 and one in 2016. During cross-examination of the second plaintiff this is what ensued

Q: Are you aware that the defendant spent money to put up tiles in the shop?

A: That is not true. We had already tiled the shop before the defendant rented it. Everything was uniform before the defendant came.

Q: Was the front of the shop tiled by the defendant?

A: Yes, My Lady. He fixed a canopy outside the building and fixed tiles under the canopy

Indeed, the plaintiff's tiller Enoch Appiah (PW1) corroborated the second plaintiff's testimony in his evidence in chief and further confirmed that the stores on the ground floor do not have canopies except the stores being used by the defendant and he used tiles on the area being covered by his canopy. At the end of his evidence in chief the defendants witness informed the court that he was not going to cross-examine the witness and therefore he was discharged. Thus, in **Takoradi Flour Mills v. Samir [2005-2006] SCGLR 882,** the court held that ***"where a witness testifies and the opponents consciously fails or refuses to cross-examine the witness, the court may consider the evidence as admitted by the opponent".***

It is therefore evident that contrary to the defendants' witness testimony that due to the uncompleted nature of the shops at the time the defendant incurred cost to tile the shops, the shops had already been tiled before he came to rent the shops but rather, he made canopies and tiled under the canopies he had made. He again alleged that he did it with the consent of the second plaintiff and with his promise that he would use the amount he expended as rent but failed to lead cogent evidence, or call other witnesses or lead further evidence to prove that he had such an agreement with the landlord.

The defendant also made an allegation in his defence that the plaintiffs had given the frontage of his shops to some sellers of indomie and other food vendors who come in the evenings to sell when they close work and that the vendors make the place dirty and he has to engage cleaners to clean at an additional cost.

With this allegation and the third issue, indeed the defendant failed to lead any further evidence in the form of calling any further witnesses to corroborate his testimony or also file any pictorial evidence to support his case. He also failed to lead further evidence to prove that he always engages cleaners to clean at an additional cost. It is the view of the court that the defendant failed to lead cogent evidence to support this claims.

The court will therefore hold from the above analysis that the defendant's counterclaim has failed in its entirety. Accordingly, the court therefore holds upon considering the total evidence adduced that;

i. The lease between the parties herein for the shop the subject matter of this suit expired on the 18th of December, 2023.
ii. The landlord constructed the shops for her personal use.
iii. The shop the subject matter of the suit is reasonably required for the personal use of the landlord
iv. The landlords (plaintiffs) herein constructed the shops for business purposes.
v. Even though the five months' notice period given by the plaintiffs fell short of the required notice period they should have given, taking into consideration the number of months the rent officer gave which is the six months, the six months' notice period has been fulfilled. The court hereby holds that period given by the rent officer constitutes enough notice.

In view of the foregoing, the court hereby upholds the recommendations of the rent officer that the defendant should be ordered to quit or vacate the shop, the subject matter of the suit and consequently orders as follows;

vi. That the defendant is ordered to vacate the shop the subject matter of the suit by the 3rd July 2025 and hand same over to the plaintiffs.

vii. That the defendant is hereby ordered to pay any arrears of rent payable to the plaintiffs including that of the one-month period granted.

viii. Cost of GHC 2000 is awarded for the plaintiffs against the defendant.

**(SGD)**

**H/W NANCY TEIKO SEARYOH**

**(MAGISTRATE)**

**1ST PLAINTIFF PRESENT**

**DEFENDANT ABSENT REPRESENTED BY MICHAEL AKUAMOAH**

**CAROLINA SERWAA OBENG ESQ HOLDING BRIEF OF DR. MAURICE JENNIFRED ADJEI ESQ FOR THE DEFENDANT PRESENT**